

The Claremont City Council held a meeting on Wednesday, November 29, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett asked to move New Business Item D – Ambulance Agreement Update - up to item A under New Business. There were no objections.

MAYOR'S NOTES

Broad Street Park

Mayor Lovett noted the Christmas decorations and lights at Broad Street Park. She unfortunately was unable to attend Santa's arrival on Friday night, but Councilor Towle was present and wished to say a few words.

Councilor Towle said she was very pleased with the turnout to the event. The line to see Santa stretched back to City Hall. Everything went smoothly. The choir was small (only 5 members), but they had microphones and were applauded. Everyone seemed to have had a good time. Mrs. Towle thanked everyone who had helped to make the event happen – notably the Parks and Recreation Department, the Claremont Fire Department, and several other individuals whose names she did not know. Mrs. Kier said that members of the group, Heart of Claremont, had helped with the decorating. The Mayor expressed her thanks as well and apologized if anyone was left out of the recognition.

Mayor Lovett said she had attended the NHMA conference on 15th and 16th of November. She brought back copies of two documents for each of the Council members – (1) the final legislative bulletin for 2017, and (2) a court update – legal review of court decisions that may have the potential to impact communities across the State.

Wild Goose Boat Launch

The commission created by the Governor regarding the Wild Goose boat launch issue is convening November 30th. There will be site visits to both the Wild Goose launch site (at 1PM) as well as a potential alternative site at the Sunapee State Park (2PM). The discussion will resume at the Newbury Town Offices from 3PM – 5PM. The proceedings are open to the public. The Mayor will be in attendance for the entire proceedings and offered to provide shuttle transportation to anyone interested in attending.

Mayor Lovett said Don Clarke had addressed the commissioners at their last meeting. The commission has passed a resolution in support of the construction of a boat launch at Wild Goose. The Conservation Commission has done something similar.

The Mayor has the commission's meeting schedule. Their report is due (presumably to the Governor) by March 1st, 2018.

Orientation

Mayor Lovett said she has been working with Assistant Mayor Damren to create an orientation program for incoming Councilors. Input from the new Councilors has been solicited by email. The scheduling of the orientation class is still being determined. The objective is to ensure that incoming Councilors are well prepared to start their term on January 1st.

CITIZEN'S FORUM

There were no citizen's comments.

OLD BUSINESS

Resolution 2018-18 Energy Advisory Committee – Public Hearing

Mr. Damren said he was wondering why the Council had this. He said he had read the excerpted minutes of the previous meeting and believed he had asked that the question of committee versus commission be brought back to the Council at this meeting. He said he did not recall requesting specifically having a committee. He said he is still open to discussion on why we aren't having a commission.

Mr. Koloski said he thought Mr. Damren was correct, but thought the Council had concluded that everyone was leaning toward one or the other and then they were going to come back with that option.

Mayor Lovett noted there was background information in the packet that had been compiled by the Planning and Development Department which was much appreciated. She said she wasn't expecting a Resolution to be in play at this meeting, because she had research that she wanted to add to the discussion which she hasn't had an opportunity to do.

Mayor Lovett noted that City Planner, Michael McCrory was present and invited him to speak to the subject.

Mr. McCrory said Planning and Development Director, Nancy Merrill, understood that the Council wanted to continue with the committee structure and had proceeded accordingly. She apologized for the misunderstanding. Mr. McCrory said he was at this meeting to continue the discussion and to answer the Council's questions.

Mr. Damren asked Mr. McCrory to list any benefits of a committee over a commission. Mr. McCrory said, based on his experience with a half dozen committees in the region, it's the simplicity of it. In 2011-2012, Mr. McCrory was involved in helping develop energy committees in the region. He said the question of commissions was rarely posed. He said he worked extensively with the Lebanon energy advisory committee – it answers to the City Council. Whenever the committee wanted to do any planning work or implementation, capital work, they would work with the relevant department and the City Council. There was at least one City Council member on that committee who was advocating for City projects. Mr. McCrory said the committee structure works well in the communities that he has been involved in. Commissions have their own fund available to them. That's the fundamental difference between the two. He said committees generally work on planning activities and when they take on a project, it is of such magnitude that it requires a full community investment.

Mr. Raymond said there are 53 energy committees and 7 commissions statewide. He said it would seem that committees work better for this situation.

Mayor Lovett said that, if it was okay with the Council, she has been doing her research and she would like to present her findings for the Council's deliberation, so she wanted to pull the resolution today. She said she didn't think the Council was quite ready to do this.

Mayor Lovett asked if the Council wanted to act on this now, or wait until the new Council is seated in January. She said she didn't think there was any concern about moving forward one way or the other. She said she wanted the new body to have as much flexibility and opportunity as possible. Mayor Lovett said she wanted to give to the Council, for future discussion, if the Council wanted to continue the discussion on the 13th, the research that she had been able to pull together.

Mr. Koloski asked about what would happen on the 13th. Mayor Lovett said the Council could make a decision at the next meeting – because by then, the Council will have her research and the research from Planning and Development; Councilors will have had time to read the statute; and there will be information on how communities have fared with energy commissions.

Mayor Lovett asked if the Council wanted to continue the discussion to the December 13th meeting and then make a decision, or, if they preferred to have the new Council make the decision, the matter could be postponed until January.

Mr. Koloski said he wanted to forward with this. He said there are substantial projects that are looking at the City; that this is an important piece that sends a message that you're a player in the energy field; and he didn't want to delay it. He didn't feel this was a major decision. He said he was not in favor of a commission because they can spend funds independently. He prefers a committee because it would have to come to Council to expend funds.

Mayor Lovett disagreed with Mr. Koloski's assertion that commissions can spend funds independently, because they have to report to the Council what they are doing with their funds. Mr. Koloski countered that the Conservation Commission spends funds without Council oversight. Mayor Lovett said the Council has that information in its finance report, so the Council does have access to it. Mr. Koloski said he wanted Council to be able to oversee the spending before it is spent, and that would require having a committee.

Mr. Pope said he had mixed feelings on it. Commissions have access to grants, but he liked the idea of financial accountability as with a committee. He said he had been looking at the RSAs relative to commissions and urged the other councilors to do the same (chapter 38D).

Mr. Raymond said he was in favor of the committee and was in favor of moving forward with it with this council.

Mayor Lovett asked for a compromise by moving it to the 13th and making a decision then. The Councilors agreed. Mayor Lovett invited all interested parties to attend the meeting on the 13th.

Mayor Lovett asked if anyone from the public wanted to speak on this issue.

Mr. Folta asked if energy commissions were authorized by statute to receive funds like conservation commissions can.

Mr. Folta said Claremont is late in developing an energy committee and appears to be scurrying to catch up. He also asked if there would be enough people volunteering to fill the seats on the new committee/commission.

Mayor Lovett said RSA 38D (5) indicates that energy commissions are authorized to receive and accumulate funds. Any donations or expenditures over \$500 require a public hearing.

Mrs. Kier said that while Claremont may be late in developing an energy committee/commission, it is one of the first cities in New Hampshire to have an energy chapter in its Master Plan. She added there were several people very interested in this particular subject and there probably won't be a problem filling the seats.

Mr. Damren asked if a commission has more access to state or regional resources than a committee would. Mr. McCrory didn't believe there was any difference as resources view the recipient as the City in either case, especially in light of the fact that 90% of the energy groups are committees (the statute refers only to commissions).

Mr. Temple asked for more information on what resources are available from the regional planning commission already without a committee or commission. Mr. McCrory said the RPC has services available, but it helps to have body able/willing to manage it.

Mr. Temple asked if it should be a subset of the Planning Board. Mr. McCrory said legal review did not call for it and he felt it would be better if the committee answered directly to the City Council or be a free-standing commission. Mr. McCrory said the Planning and Development staff do not have an opinion one way or the other.

Mr. McNutt said he had had positive experiences working with energy groups in Massachusetts.

Mr. Pope said RSA 38D (6) references a commission and asked if it would apply to a committee as well. Mr. McCrory said there is no difference between the two from the state's perspective. He offered to look into it and update the Council at the meeting on the 13th.

Mr. Damren asked what form this would be in for the meeting on the 13th? A resolution? For a committee or a commission? Mayor Lovett said NHMA would have to be consulted as to the process for adopting one versus the other. She suggested having documentation ready for either choice.

Mayor Lovett again thanked the staff of the Planning and Development department for the work done in preparing the information for the Council.

Ordinance 557 Naming City-Owned Property – Second Reading – Public Hearing

Mr. Pope said the version before the Council contains the changes requested by the Council and made by the Policy Committee. It has been presented to the Council and passed the first vote. It is before the Council once again for a second reading, a public hearing and final vote. Mr. Pope thanked former Assistant Mayor Victor Bergeron for all of the work he had put into this policy. He said most communities do not have such a policy and are waiting to see what Claremont adopts.

Mr. Pope stated, "This is for Ordinance #557, Naming of City-Owned Property. The explanation of the proposed action is as follows: *The purpose of this proposed change is to establish procedures and criteria for naming city-owned property, including streets.*

Enactment of this Ordinance will revise Chapter 16, by adding a new Article V, Naming of City-Owned Property.

Mr. Pope stated that this was his motion. This motion was seconded by Mrs. Kier.

Mayor Lovett called for comments from the Council. There were none.

Mayor Lovett opened the public hearing and called for comments from the public. There were none, so Mayor Lovett closed the public hearing and called for a vote on the motion.

Voice vote: motion carried unanimous in favor

NEW BUSINESS

Ambulance Agreement Update

Mr. McNutt said the Council had before it a renewal of an agreement with Golden Cross Ambulance. They have been providing ambulance services to the City since 1969. He said nothing had changed except today he had sent out an update that changes the term to three years with the option to extend for two additional years if that is the wish of the Council at the end of the first three years. The only other change to this contract is Golden Cross is offering a 16.6% reduction in what they charge. In FY18, we were charged \$72,000 a year; they are proposing \$60,000 a year and to hold that level for all three years of the contract.

Mr. Koloski asked to be recused as he is an employee of Speedway Safety Services which has the same owner as Golden Cross Ambulance.

Mrs. Towle said she was happy to see the contract term changed from five years to three years. She asked if the 16.6% reduction was the result of a prior discussion or if it was part of the update. Mr. McNutt said it came about in his initial meeting with the owner of Golden Cross where the possibility of extending the contract was discussed. He said they like being in the City; they have been here for a long time and have no intention of leaving; they have the ability to offer their services for less; and they appreciate the situation that Claremont taxpayers are facing.

Mr. Temple asked if this was a contract renewal or did Mr. McNutt go out to bid and get this number. Mr. McNutt said it was a contract renewal. He said he had done a survey of prices and found that no one else could come close to matching this price. The last time this went out to bid, the lowest bid was \$120,000. Mr. Temple said he was uncomfortable renewing the contract without going out to bid and wondered if this transaction complied with the City's purchasing policy.

Mr. Temple wanted to clarify for the public that this contract is to provide a service, but if the ambulance comes to your home to assist you, you will pay for that service. Mr. McNutt said that's true in some circumstances. He said it is a service that the City is required to provide.

Mr. Temple asked if there is a reason that the City is not in the ambulance business as a means of generating money. He wanted to know if that option had been explored. Mr. McNutt said that in his experience there is a potential for it to be a source of revenue, but that it could also be "a major loss leader". There are also the initial capital costs that must be considered – ambulances, equipment, additional staff with other post-employment benefit obligations – about \$1M. He said he has seen where things have started out well, but over times, changes occur and the uncollectibles start to add up and can become hundreds of thousands of dollars very quickly. It is also much harder to undo a city-owned ambulance service than it is to change a contractor.

There is ample opportunity to change services within the Golden Cross contract at our choice at any time – it is not mutual.

Mr. Temple repeated that he wanted to be certain that this transaction was following City purchasing policy. Mr. McNutt said he had had this reviewed and it follows the purchasing policy.

Mrs. Towle asked Mr. McNutt which towns he had used for comparison pricing. Mr. McNutt said Lebanon and Littleton. Littleton is \$330,000. It is city-run.

Mrs. Kier asked about item #15 in the description of services referencing timeframes and percentage of calls (6 minutes for 70% of calls) – she asked if this information reflected recent data. Mr. McNutt said he would have to ask Golden Cross.

Mayor Lovett invited the members of the fire department, who were present in the audience, to speak on this.

Jim Chamberlain, Ward 3, said he represents the professional firefighters of Claremont. He said he and his members have been looking into a full fire service EMS department. The fire department would be the sole responder to all EMS calls (patient care and patient transportation to an approved health care facility). We have been selected by the International Association of Firefighters to do a study free of charge. The study would cover everything from start-up costs to revenue and includes multiple year projections. He put together a committee of members to start researching this. Mr. Chamberlain and his committee have been working on collecting the data that the Association needs to start the study. He is hoping to have the data submitted by the end of this year. The Association needs three months to complete the study (by March 2018). Mr. Chamberlain said he had hoped to have the study results to the Council before the Council makes any long-term commitments, so that the Council has two options to consider.

Mr. Damren said he assumed such a transition would be a phased project and said he assumed it would be a multi-year work-up (and that the structure to house the ambulances needed to be included in the start-up costs).

Mr. Chamberlain said he would forward the question of housing for the ambulances to the fire chief. He was uncertain as to how long this would take. He said he had assumed the ambulance contract was in effect until 2018 so he was using that as a stepping stone.

Mr. Damren said he was interested in seeing the information and acknowledged that many communities are going that way.

Mr. Chamberlain said Claremont is one of only a few communities with a full-time fire department that does not provide ambulance service. He said the firefighters are all trained to the same level as the Golden Cross personnel and some have beyond that level of training, so the department is already capable of providing the service.

Mayor Lovett reminded the Council that contracting issues are the Manager's jurisdiction, that Council does not have the authority – it can only make recommendations. She said at this point, the only recommendation from the Council is to ensure that the contract renewal is in compliance with the City's purchasing policy. She thanked the fire department for taking the initiative to provide the City with another option and said they were all looking forward to the report. She also thanked Mr. McNutt for including this information in the Council packet; the transparency of it.

Mr. McNutt thanked the fire association for their work. He said this contract has the option for termination, so if the report comes back that there is a better model for the City, the contract can be terminated.

The current contract ends December 31, 2018. The renewed contract would become the superseding contract.

Mr. Pope asked to go on record as recommending that the Council have the fire department bring their report when it's done. He then made the request into a motion. The motion was seconded by Mr. Damren. All were in favor.

Mrs. Towle asked for clarification of the dates of the old contract versus the new contract. The current contract ends December 31, 2018. However, if the contract is renewed as presented by Mr. McNutt, the new contract would become effective January 1, 2018 and would remain in effect until December 31, 2020.

There was confusion about what would be transpiring, and the motion was repeated.

Motion: To make the recommendation that Council hear what the firemen have to say once they get their report, and review the contract at that point if necessary.

Made by: Mr. Pope **Second:** Mr. Damren

A comparative analysis could be made at that time and the Council could make another recommendation.

Mr. Raymond said he understood that the contract would be renewed by the Manager for three years under the terms and could be terminated at any time if needed. Mr. McNutt agreed with that summary.

Mr. Damren said transition to a municipal model could take several years.

Mr. Simonds pointed out that the fire department already backs up Golden Cross and all of the firefighters are already trained for the tasks.

Vote on the motion: Unanimous in favor

Mayor Lovett thanked all of the parties involved for their work and presentations.

Mr. Temple asked about the “motion to authorize” that had been distributed at the meeting. Mr. McNutt said he had discovered some inconsistencies. This contract has been renewed many, many times since 1969, but not every time has the Council voted on it. Some managers simply signed it, but there were other times when the manager brought it to the Council. Mr. McNutt thought he would just bring it to Council.

Mayor Lovett asked if Mr. McNutt could ask legal counsel about this at the same time finding out if the renewal is in accord with the City’s purchasing policy. Mr. McNutt agreed. Mayor Lovett said he should bring it back to the Council at the next meeting and the Council could vote on the motion (if the motion is needed). Mr. McNutt said that if he finds out before the next meeting that a Council vote is not needed, then the written motion can just be torn up. Mayor Lovett agreed, but asked him to forward the legal guidance to the Council.

Mr. Temple asked to have the record show his concern about turning over these contracts. He said it goes back to the day the City built its first sewage treatment plant. We used a contractor operation for 18 years. The City just kept renewing. Then came a time when someone decided it should be reviewed. We saved the water and sewer rate users a significant amount of money by changing vendors. The other firm was not local but it was “almost local” and they employed local people. There was concern that going to a new vendor would result in job losses. He said that didn’t happen. He said he felt there comes a time when the Council has an obligation to the citizens to review. He appreciates saving \$12,000 a year, but he wants to be sure the policy procedures being followed are being adhered to.

Mr. Koloski rejoined the Council.

Resolution 2018-17 Main Street Reconstruction & Improvement Project – Public Hearing

DPW Director, Scott Sweet, said once the bids came in, we were “a little short on the highway side”. There are sufficient funds for utilities; contingencies might be a little tight if there are any change orders, but we have enough money right now to go with it. But on the highway side, after reviewing the project manager’s numbers, it almost looks like he knew it was going to be short, but perhaps was waiting for the bids to come in and then go from there. We are \$216,000 short on the highway side, but Mr. Sweet asked for \$300,000 for contingency. If Council approves the request, the state will approve everything on their end and the project can get underway in the spring.

Mayor Lovett clarified for the public that this project is upper Main Street, from Opera House Square to the Esersky Bridge/Leo’s Market. Some of the funds for this project were allocated through Senator Shaheen’s office ten years ago. There is an SRF loan for the sewer (\$882,000); there is encumbered water fund from last year (\$690,200); \$515,000 was encumbered from highway; and residual funds from the Shaheen funds for the engineering, which cost more than was expected. The bids came in at \$2.4M with another \$223,000 of construction observation.

The project will reconstruct the entire road, water, sewer, drainage, sidewalks from Opera House Square to the intersection of Union and Main.

Mr. Temple asked where the \$500,000 came from. Mr. Sweet said it was encumbered from the bottom line last year. It was in last year's budget thinking the project would go ahead last year, but when it didn't, the funds were encumbered.

Mayor Lovett asked if the \$300,000 from fund balance was going impact the fund balance end amount as far as the fund balance policy goes. Mr. Damren said it will lower the amount in the fund balance as it was reported on June 30th. He said \$170,000 had already been committed out of it.

Mr. Simons read the Resolution into the record:

RESOLUTION 2018-17

Supplemental Appropriation to Public Works

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing, to raise and appropriate a supplemental appropriation to the 2018 General Fund Budget as follows:

\$300,000.00	Public Works Department 01-441-980-0025
	Main Street Reconstruction

BE IT FURTHER RESOLVED that said sum of \$300,000.00 is to come from fund balance with no impact on the tax rate; and

BE IT FURTHER RESOLVED that the City Manager or his designee is authorized to execute all documents and undertake all actions as may be required to implement this resolution.

A motion was made by Mr. Simonds and seconded by Mr. Damren to adopt Resolution 2018-17 Main Street Reconstruction & Improvement Project.

Mayor Lovett asked for questions from the Council. There were none.

Mayor Lovett opened the public hearing.

Mr. Folta asked, "When is the shovel going to hit the dirt?" Mr. Sweet said it will be up to the contractor to whom the bid has been awarded. He assumes it will be early spring. Councilors asked that the details of the project be made available to the public in as many ways as possible as this project has been long awaited.

There were no other public comments. Mayor Lovett closed the public hearing.

Roll call vote:

Carolyn Towle -yes

Scott Pope – yes

Keith Raymond – yes

Allen Damren – yes

Abigail Kier – yes

Bruce Temple – yes

Nicholas Koloski – yes

John Simonds – yes

Mayor Charlene Lovett – yes

Motion carried 9 yes; 0 no

BREAK 7:54 PM – 8:07 PM

Process for Disposal of Tax-Deeded City Land

Mr. McNutt said there are multiple ways in which land that has been taken by the City (with/without structures) can be disposed of. The City used a contracted auction process in 2015 to dispose of some tax-deeded properties. It was beneficial to the City because it reduced the City's administrative overhead. The packages are put together, reviewed by legal counsel, given to the auction company, and the auction company takes it from there. Any fees incurred are built into the auction price.

Mr. McNutt read the sequence of steps that have been taken with regard to the current (three) tax-deeded properties. The demolition has gone out to bid and a pre-bid walk-through completed. The building department is handling the demolition bid process and addressing all questions related to it. Once the buildings are demolished, the lot will be left, loamed and seeded. Mr. McNutt did not know if the lots are buildable under current zoning requirements. The abutting owners may be interested in acquiring them. He said people will be made aware of when the auction will take place. Mayor Lovett asked if the abutters will be notified directly by the City. Mr. McNutt said that could certainly be done.

Mr. McNutt said he planned to discuss the future of these lots with Nancy Merrill and Mike McCrory. He is interested in gaining better control on the future use of other such lots to prevent them from sitting vacant and becoming eyesores or problems. Mayor Lovett asked that the discussion be brought to the Planning Board as well. Mr. McNutt said he would like to bring the "Sideyard Sales Program" to the Planning Board, a program that facilitates merging of these types of nonconforming lots with abutting properties.

There were no further questions from the Council.

Mayor Lovett said that in the future if a tax-deeded property has historical value to the City, it perhaps should not be sent to auction. She said it was a lesson learned from the last auction.

Mr. Koloski said he would like to see the City explore other options (for disposal of properties) besides the auctioneer currently proposed.

Housing and Economy Conference Update

Mr. McNutt recently attended the NH Housing Conference in New Hampshire. Provided in the Council packet were the powerpoint slides from the presentation given by the director of the organization. He said the presentation was very helpful in showing how the NH labor and housing economies are doing. The labor economy is doing “stellar” across New Hampshire. This creates challenges. It is hard to fill the 10,000 vacant positions in the state because we are basically at full employment. However, there are real constraints and bottlenecks in the housing market. New housing starts is at an all-time low. This is because builders cannot make any money on anything below the \$300,000 price point. This drives a variety of other impacts in housing. The average time a house is on the market in the seacoast area is 4-5 months. In Sullivan and Grafton Counties, it is 10 months and 9 months respectively. Property values are increasing almost unsustainably on the coast because they can’t really do any new construction. Things are improving here, but not as fast as we would like partly because \$300,000 price points are much harder in this part of the state. The cost of construction is no different.

Mr. McNutt said he would like to take this data and apply it to data he is collecting here about housing in Claremont and Sullivan County; then put together a more specific housing update; and then explore opportunities from there. For example, a special type of residential tax relief that would incentivize people to improve their homes. It will take really creative solutions to change the current dynamic.

If this can be done, it increases the value of the City as a whole which is one way to reduce the tax rate. When the City lost \$110M in value, the tax rate increased by \$5 without the City having done anything.

On the one hand, Claremont’s low housing prices makes our housing affordable. This can be marketed as an attractive feature. Conversely, we don’t want the properties to be undervalued. Likewise, we don’t want the skyrocketing values like on the seacoast.

Mayor Lovett said the Council looks forward to seeing the data and working on creative solutions to the challenges. However, it is also to retain the architectural beauty in Claremont. She emphasized the value of the 79E program that allows property owners to make significant improvements to historic properties.

Mr. McNutt agreed and referred to the older Victorian homes that were once single-family homes and that are now difficult to maintain. They are at risk of being chopped up into

apartments, often without permits, which imposes risks to the building's tenants and to the structure itself.

The average rent in Sullivan County is \$950, but we often see rents of \$1200-\$1500 with substandard living conditions. Claremont needs more quality rental properties.

Mrs. Towle brought up the USDA assistance programs that are available. She wondered how the City could do a better job getting the word out repeatedly. Mayor Lovett said she would be updating the Council about any changes that may be seen as a result of pushing the information out about the 42 programs that are available through USDA and Rural Development.

Mr. Koloski said he would like to know more about how many people in the community actually utilize these programs. (Mayor Lovett said she is tracking that.) Mr. Koloski said he has been told by some people who have tried to access these programs that it is not as easy as it had been presented. He said he had had similar experiences himself. Mayor Lovett said there is someone who will come here to help people with their applications on site. She will send out his contact information through the Manager's office to the other Council members and arrange for a time for him to come and provide assistance. Mrs. Kier offered to help answer questions on the Rural Development loan program as she had used the program to purchase her house.

There were no further questions or comments. Mayor Lovett thanked Mr. McNutt.

Additions/Modifications to Council Rules

Mayor Lovett presented two Rule changes that came about because of previous Council discussions. She asked legal counsel to determine if the suggested changes were proper and in compliance with the City Charter. She received feedback from legal counsel today and forwarded it to the Council. She acknowledged that the Council may not have had time to read it. The first rule change – setting the agenda is legal and proper and the Mayor has the authority to set the agenda as proposed. The second proposed change – regarding hiring legal counsel – is not correct. There are certain circumstances in which it would conflict with the charter. With legal counsel, the Mayor felt she could rewrite it to make it what it needs to be.

The Mayor said she believed that this kind of feedback is invaluable to the Council. She felt it would be helpful to have this attached as an addendum to the Council Rules.

Motion: To approve the addition to Council Rules as written by Mayor Lovett and approved by outside counsel.

Made by: Mr. Damren **Second:** Mr. Simonds

Mr. Folta said he was concerned as a citizen of the City – he said he believed the agenda should be collaborative, especially since, “you never know what kind of mayor people are going to elect”. He was opposed to this rule change. He suggested getting a second legal opinion on it.

Mr. Damren said he didn't see where this rule change would prevent a manager from proposing agenda items.

Mrs. Kier read aloud the feedback from legal counsel.

The motion was repeated.

Motion: For the Council to accept and approve the addition to Council Rules as set forth by the Mayor and approved by legal counsel for the rule for setting of the agenda as it was included in our packet.

(And one more time)

Motion: Topic 1 only – Setting of the Agenda - for the Council to approve the proposed rule as written by the Mayor and approved by legal counsel.

Made by: Mr. Damren **Second:** Mr. Simonds

Vote: Unanimous in favor

ADDITION TO COUNCIL RULES

1. TOPIC – Setting of the Agenda

BACKGROUND: Currently, the Council Rules do not outline the process for setting the agenda. The addition of this rule will clarify the process.

Rule: When setting the agenda for a Council meeting, the Mayor will coordinate agenda items with the City Manager. The final authority for determining content of the agenda rests with the Mayor. Once the Mayor has approved the agenda, the Council Clerk will format and post the agenda.

2. Topic –Hiring Legal Counsel

BACKGROUND: Legal Counsel represents the interests of the City as a whole and not the independent interests of either the City Council or City Manager. To ensure the integrity of this relationship, both the City Council and the City Manager should take part in the hiring of Legal Counsel.

Rule: When the City hires Legal Counsel, both the City Council and the City Manager will participate in the hiring decision and reach consensus. The administrative responsibilities of hiring Legal Counsel will rest with the Office of the City Manager.

Motion: To withdraw topic 2

Made by: Mr. Pope **Second:** Mrs. Towle

Vote: Unanimous in favor

FUTURE AGENDA ITEMS AND DIRECTIVES

Mrs. Towle asked Mayor Lovett to consult with councilors that are leaving when creating the new councilor orientation program. Mayor Lovett said she would make sure that happens.

Mr. Pope said he had asked about emergency warming shelters back in July (not referring to the shelter on Central street). He said he would like an update or to have it put back on the table.

Mr. Pope said he also had some information to share for the orientation program. Mayor Lovett invited all of the Councilors to share with her (through the Manager's office) any information they think might be helpful.

Mr. Raymond repeated his request to have the traffic committee look at the traffic flow on Pleasant Street where it splits off on West Pleasant and goes up to South Street. He suggested having a stop sign at the end of Pleasant Street and having the stop sign and island removed from South Street so that traffic going around South Street onto Pleasant Street as one flow; and having traffic on Pleasant going up become one-way. Mr. McNutt said he would look into it.

Mr. Koloski asked if Primex does annual safety audits. Mr. McNutt said he would look into it.

Mr. Koloski asked how we are doing without legal counsel on staff and how the expenses are tracking. What is the cost to date? Mr. McNutt will look into it.

Mayor Lovett suggested not meeting on December 27th. (The Council is meeting with the school board on the 14th.)

Mr. McNutt said he would have an update on the opioid situation in Claremont on the 13th.

The Council agreed to not meet on December 27th.

Mr. McNutt said he would like to take the last three days of December as vacation days. Council agreed.

Mayor Lovett said there will need to be an ascertainment hearing for the cable franchise on the 13th – all were in agreement with that. There also needs to be a nonmeeting at 6PM on the 13th so the Manager can update the Council on collective bargaining. There will be an associated item on the agenda for Council to approve or deny any negotiated contract that may be presented.

Other items set for the meeting on the 13th include a motion to accept a wooden flag for the police department; a resolution to accept and expend a canine grant; making three streets off of Maple Avenue into school zones (ordinance or resolution); Sugar River Valley Riders annual permission; update on sterile syringe exchange.

Mr. Damren asked when the audit report will be ready for Council. Mr. McNutt will find out.

Committee reports: Mr. Pope said the Policy Committee is waiting for information on lead.

CONSULTATION WITH LEGAL COUNSEL

There was no consultation.

ADJOURNMENT

At 9:05 p.m., a motion was made by Mrs. Kier and seconded by Mr. Temple to adjourn.

Voice vote: motion carried by unanimous vote

Respectfully Submitted,
deForest Bearse